

Terms and Conditions — Payscribe UK

Entity: Payscribe Limited (Company No. 17196544) Last updated: [DATE] — Version 1.0
(new document)

1. Who We Are

These Terms and Conditions ("Terms") govern your access to and use of the services, platform, website, and applications provided by **Payscribe Limited**, a private limited company registered in England and Wales under company number **17196544**, with its registered office at 12 Beverley Road, Hull, HU5 1LU, United Kingdom ("Payscribe UK", "we", "us"). Our ICO registration number is **ZC155519**.

By accessing or using the Payscribe platform as a UK user - including our website at www.payscribe.co, our web application, and any related mobile applications (collectively the "Platform") - you agree to be bound by these Terms.

If you do not agree with any part of these Terms, you must stop using the Platform immediately.

Note on scope: These Terms apply to users accessing services through Payscribe Limited in the United Kingdom. Users in Nigeria are governed by the separate Pscribe Digital Services Limited Terms and Conditions.

2. Regulatory Status

Payscribe Limited has applied to the Financial Conduct Authority (FCA) for authorisation as a Small Payment Institution (SPI). **This application is under review and Payscribe Limited is not yet an authorised or registered payment institution.** Until authorisation is granted, Payscribe Limited does not provide regulated payment services to UK customers, and this Platform is currently in a **pre-launch / pre-trading** state for UK users.

Payscribe Limited has also applied for registration as a Money Service Business (MSB) with HM Revenue & Customs. This registration is pending; Payscribe Limited is not yet a registered MSB.

This section will be updated immediately upon any change to our regulatory status. Always refer to the latest version of these Terms for our current status. Nothing in these Terms should be read as a representation that Payscribe Limited currently holds any regulatory authorisation it has only applied for.

3. Our Relationship with Pscribe Digital Services Limited

Payscribe Limited's platform is supported by technology infrastructure provided by **Pscribe Digital Services Limited** (RC1946239), a company incorporated in Nigeria. Pscribe Digital Services Limited is an **independent third-party technology infrastructure provider**, operating under an outsourcing/services agreement with Payscribe Limited. It is not a subsidiary, branch, or affiliate of Payscribe Limited. The two companies are separately owned and separately regulated in their respective jurisdictions, and operate under a shared "Payscribe" brand pursuant to shared branding assets

4. Eligibility

To use the Platform, you must:

- Be at least **18 years of age**
- Have the legal capacity to enter into a binding contract
- Be a resident of the United Kingdom (or another jurisdiction where our services are lawfully available to you)
- Comply with all applicable laws and regulations in your jurisdiction

If you are using the Platform on behalf of a business or organisation, you represent and warrant that you have the authority to bind that entity to these Terms.

5. Account Registration

5.1 Creating an Account. To access certain features, you must register for an account and provide accurate, current, and complete information. You agree to update your information promptly if it changes.

5.2 Identity Verification. As part of onboarding as a UK payments business, we are legally required to verify your identity before providing services. You authorise us (directly or through third-party providers) to conduct identity verification, KYC, and KYB checks, including sanctions and PEP screening, business registration checks, and ongoing monitoring as required by anti-money laundering legislation. Failure to provide satisfactory verification may result in restricted or suspended access to the Platform.

5.3 Account Security. You are solely responsible for maintaining the confidentiality of your login credentials and for all activity under your account. You must use a strong, unique password, not share your credentials with any third party, and notify us immediately at security@payscribe.co if you suspect unauthorised access. We will never ask you for your password by email, phone, or any other unsolicited communication.

6. Our Services

Once authorised, Payscribe Limited intends to provide a financial technology infrastructure platform that may include, depending on your account type:

- Money remittance

Availability of specific services is contingent on completion of our regulatory authorisation (see §2). We reserve the right to modify, suspend, or discontinue any service at any time, with reasonable notice where possible.

7. Payments, Fees, and Pricing

7.1 Fees. Fees for using the Platform are set out on our website or disclosed to you at the point of transaction. Fees are subject to change. We will provide reasonable advance notice of material fee changes.

7.2 Taxes. All fees are exclusive of any applicable taxes, levies, or duties. You are responsible for any taxes applicable to your use of the Platform.

7.3 Payment Authorisation. By initiating a transaction on the Platform, you authorise Payscribe Limited to process that transaction on your behalf. You are responsible for ensuring sufficient funds are available.

8. Refunds and Cancellations

8.1 Business Users. Our fees are generally non-refundable once a transaction has been processed, except where a transaction has failed due to an error on our part, in which case we will refund the transaction amount in full.

8.2 Consumer Users. If you are a consumer, your statutory rights under the **Consumer Rights Act 2015** and the **Payment Services Regulations 2017** are not affected by these Terms, including protections for misdirected or unauthorised transactions.

8.3 Failed Transactions. Where a payment fails due to technical error on our part, we will endeavour to reverse or refund the transaction within **5 business days**. Where the failure is attributable to a third party (e.g. a receiving bank), resolution timelines may vary.

9. Unauthorised Transactions and Disputes

9.1 Reporting. If you believe an unauthorised transaction has been made on your account, notify us as soon as reasonably possible at hello@payscribe.co.

9.2 Investigation Process. We will acknowledge your report within **2 business days**, investigate promptly and in good faith, and provide a resolution or update within **15 business days** (or up to **35 business days** in exceptional circumstances).

9.3 Liability for Unauthorised Transactions. Our liability for unauthorised transactions is governed by the Payment Services Regulations 2017. You may bear limited liability (up to **£35**) for transactions arising from your failure to keep your account credentials secure, unless the transaction arose from our gross negligence or fraud.

10. Prohibited Activities

You must not use the Platform for any illegal, fraudulent, or unauthorised activity; money laundering, terrorist financing, or sanctions evasion; processing payments for prohibited goods or services; circumventing our AML, KYC, or fraud prevention controls; exploiting technical errors or vulnerabilities for financial gain; manipulating foreign exchange rates or transaction systems; fraudulent or chargeback abuse of virtual cards; impersonating any person or entity; uploading or transmitting malware or malicious code; or any activity that violates applicable UK law or regulation.

Breach of this clause may result in immediate account suspension, termination, legal action, and reporting to relevant regulatory and law enforcement authorities.

11. Intellectual Property

All content, software, designs, trademarks, logos, and technology on the Platform that is owned by Payscribe Limited remains our property or that of our licensors. Nothing in these Terms grants you any rights to use our intellectual property other than to access and use the Platform in accordance with these Terms. You must not copy, reproduce, distribute, or create derivative works from any part of the Platform without our prior written consent.

12. Limitation of Liability

12.1 To the fullest extent permitted by applicable law, Payscribe Limited shall not be liable for indirect, incidental, special, consequential, or punitive damages; loss of profits, revenue, or anticipated savings; loss of data or business interruption; or damages arising from third-party actions, including receiving banks, payment networks, or our technology infrastructure provider.

12.2 Our total liability to you in connection with the Platform shall not exceed the greater of the total fees paid by you to Payscribe Limited in the **3 months** immediately preceding the event giving rise to the claim, or **£100**.

12.3 Nothing in these Terms limits or excludes our liability for death or personal injury caused by our negligence, fraud or fraudulent misrepresentation, or any liability that cannot lawfully be excluded under English law or the Consumer Rights Act 2015.

13. Indemnification

You agree to indemnify, defend, and hold harmless **Payscribe Limited** and its directors, officers, employees, and contractors from and against any claims, liabilities, damages, losses, costs, or expenses (including reasonable legal fees) arising from your use of the Platform in violation of these Terms, your violation of any applicable law or regulation, any content you submit through the Platform, or any dispute between you and a third party arising from your use of the Platform.

14. Force Majeure

We will not be liable for any failure or delay in performing our obligations under these Terms where such failure or delay results from circumstances beyond our reasonable control, including acts of God, natural disasters, war, civil unrest, government action, regulatory changes, power outages, or internet service disruptions.

15. Third-Party Links and Services

The Platform may contain links to third-party websites or integrate with third-party services. We do not endorse and are not responsible for the content, practices, or privacy policies of any third parties.

16. Suspension and Termination

16.1 By Us. We may suspend or terminate your access to the Platform at any time where we reasonably suspect a breach of these Terms, where required by law or regulatory obligation, where required by a competent authority, or where we reasonably suspect fraudulent, illegal, or harmful activity. We will provide advance notice where legally and operationally possible.

16.2 By You. You may close your account at any time by contacting hello@payscribe.co. Closure will not affect any rights or obligations that arose prior to termination.

17. Complaints

We take complaints seriously. Contact us:

Email: hello@payscribe.co **Post:** Complaints, Payscribe Limited, 12 Beverley Road, Hull, HU5 1LU, United Kingdom

We will acknowledge your complaint within **5 business days** and aim to provide a full response within **15 business days**. If we cannot resolve your complaint within this timeframe, we will write to you explaining why and provide an updated resolution date. If you remain dissatisfied, you may have the right to refer your complaint to an appropriate external dispute resolution scheme once Payscribe Limited is FCA-authorised; details will be provided with our final response.

18. Changes to These Terms

We may update these Terms from time to time. We will notify you of material changes by posting the updated Terms on our website and, where appropriate, by email. Your continued use of the Platform after the effective date of any changes constitutes acceptance of the revised Terms.

19. Governing Law and Jurisdiction

These Terms are governed by and construed in accordance with the laws of **England and Wales**. Any dispute, claim, or controversy arising out of or in connection with these Terms shall be subject to the **exclusive jurisdiction of the courts of England and Wales**, except where applicable consumer protection law entitles you to bring proceedings in another jurisdiction.

20. Severability

If any provision of these Terms is found to be unenforceable or invalid, that provision shall be limited or eliminated to the minimum extent necessary so that these Terms otherwise remain in full force and effect.

21. Entire Agreement

These Terms, together with our Privacy Policy and Cookie Policy, constitute the entire agreement between you and Payscribe Limited in relation to your use of the Platform and supersede all prior agreements and understandings.

22. Contact Us

Email: compliance@payscribe.co **Post:** Legal, Payscribe Limited, 12 Beverley Road, Hull, HU5 1LU, United Kingdom